

Equivalent Citations

citation codes .

Vineesh v. Sub Inspector Of Police

Kerala High Court (Sep 3, 2015)

CASE NO.

Crl. M.C No. 5238 of 2015, C.C No. 1168/2005 of Judicial First Class Magistrate Court-II, Ernakulam, Crime No. 765/2002 of Ernakulam Central Police Station, Ernakulam

JUDGES

- B. Kemal Pasha, J.

ATTORNEY

- By Advs. Sri. Ajoy Venu, Sri. M.M Nias
- R1 by Public Prosecutor Smt. Sareena Geoege
- R2 by Adv. Sri. P.T Sheejish

JUDGMENT

B. Kemal Pasha, J.:— Petitioner is the 5th accused in C.C No. 1168/2005 pending before the JFCM-II, Ernakulam for the offences punishable under **Sections 379 and 201 read with Section 34 IPC**. The allegation is one of *theft* of the motor *bike* of the de facto complainant. It seems that the allegation against the present petitioner is that he was instrumental in dismantling the vehicle and affixing some portions of the same to the motor *bike* of the 4 accused. Further allegation against the petitioner is that he had altered the Chasis number of the vehicle. According to the petitioner, this Court has quashed the charges against accused Nos. 3 and 4 and, therefore, the same benefit may be extended to the present petitioner also.

2. This Court is of the view that when the offence is one of *theft* , this Court cannot exercise the power under **Section 482 Cr.P.C** for quashing such a grave offence. Of course, when another Bench of this Court had quashed the charges against accused Nos. 3 and 4, the court below shall expedite the proceedings and dispose of the matter expeditiously. This Court cannot accept the settlement arrived at between the petitioner and the de facto complainant.

3. With the said observations, this Crl.M.C is dismissed.